

NONDISCLOSURE AGREEMENT

This Nondisclosure Agreement (hereinafter “Agreement”), which shall be effective as of the last date of signature below, is entered into by and between [Cognizant Technology Solutions U.S. Corporation] (hereinafter “Cognizant”) and SUMA SRI BACHU (hereinafter “Individual”). Cognizant and Individual are hereinafter referred to individually as a “Party” and collectively as the “Parties.”

WHEREAS the International Bank for Reconstruction and Development (hereinafter “IBRD”) and/or the International Finance Corporation (hereinafter “IFC” and together with IBRD collectively “the World Bank”) has engaged the services (the “Services”) of Cognizant under a contract for the purpose of providing certain IT services to the World Bank (hereinafter “Contract”).

WHEREAS, Cognizant and Cognizant employees and contractors shall have access to confidential and proprietary World Bank information and materials;

WHEREAS, I, SUMA SRI BACHU , am an employee or contractor of Cognizant or its affiliate, and will be working on site at IBRD and/or IFC and may have access to proprietary and confidential information under the Contract, including without limitation: financial information; research, development or business plans; operations; systems; policies, procedures and practices; data; software, software applications, computer outputs; source codes, encrypted data; methods; personnel records; and/or other financial, business or employee-related information that may be proprietary or confidential in nature.

NOW, THEREFORE, the Parties agree as follows:

1. That any and all knowledge and information that Individual may acquire in connection with the Contract from the World Bank or its employees, agents or consultants, Cognizant (or another employee, consultant, agent or subcontractor of Cognizant), or other contractors of the World Bank (or employees, consultants, agents or subcontractors of such contractors), or by virtue of the performance of services under the Contract, shall for all time and for all purposes be regarded by Individual as strictly confidential and shall be held by Individual in confidence, and solely for the World Bank’s benefit and use. Individual shall not use, publish or disclose to any person or entity whatsoever any and all such knowledge and information, without the World Bank’s prior written authorization from the Chief, Corporate Procurement.
2. Additionally, Individual shall hold confidential and shall not use, publish or disclose to others any and all work and services carried out under the Contract, and Individual shall not reference either the World Bank or the work performed for the World Bank, without the World Bank’s prior written authorization.
3. Individual also shall hold confidential and shall not use, publish or disclose to others, without the World Bank’s prior written authorization: (a) any and all information provided by Cognizant to the World Bank in its reports, or in any other submissions, whether presented orally, in writing, electronically or by other means, or through work done, together with any activities or documents under this Contract; and (b) any and all information developed under

the Contract by Individual, Cognizant (or another employee, consultant, agent or subcontractor of Cognizant) or the World Bank.

4. The foregoing obligations shall not apply to any information: (a) that was properly in Cognizant's possession **without restriction** on disclosure prior to Individual's commencement of work under the Contract, as evidenced by Cognizant's internal documentation; or (b) is or becomes publicly available through no breach of this Nondisclosure Agreement or any other wrongful act or omission by Individual or Cognizant (or another employee, consultant, agent or subcontractor of Cognizant).

5. Individual understands that any breach of this Agreement may cause Cognizant and/or the World Bank substantial and irreparable damages, and therefore, in the event of such breach, in addition to any and all other remedies that may be available, Cognizant and/or the World Bank shall have the right to seek specific performance and injunctive and equitable relief. In addition, Cognizant has the right to immediate removal of any Individual from World Bank premises in the event of such breach.

6. If Individual loses or makes any unauthorized disclosure of any proprietary or confidential information, Individual shall notify Cognizant and Cognizant shall notify the World Bank immediately and shall take all steps reasonable and necessary to retrieve the lost or improperly disclosed information. Individual further agrees to cooperate to the fullest extent with any investigation in connection with any breach or alleged breach of this Nondisclosure Agreement.

7. Upon the request of Cognizant or the World Bank, and /or in the event of the termination of the Contract for any reason whatsoever, Individual will surrender to Cognizant and/or the World Bank all notes, records and documentation that was supplied by Cognizant and all notes, records, documentation that was accessed, used, created by the Individual for the purpose of Individual's services under the Contract.

[Cognizant Technology Solutions U.S. Corporation]

Accepted and Agreed to:

Accepted and Agreed to:

(Cognizant)

Nataraj Manickam
Associate Director

Date:

Date:

(Date format is MM/DD/YYYY)